

Court No. - 21

Case :- WRIT - C No. - 35257 of 2022

Petitioner :- Shwetanshu Kumar Ojha

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Nand Lal Pandey, Suyash Pandey

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

As prayed by Sri N.L. Pandey, counsel for the petitioner, put up as fresh tomorrow i.e. 6.1.2023.

He will inform Sri Chetan Chatterjee, learned counsel appearing for respondent about the order passed today in writing.

Order Date :- 5.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

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Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

It is submitted that the procedure prescribed under the Electricity Code, 2005 for making final assessment in case of theft of electricity has not been followed and in a mechanical manner the Executive Engineer has issued an order dated 17.12.2020 mentioning that in absence of any evidence filed by the petitioner, he is required to deposit the amount demanded from him by the provisional assessment order.

It is urged that the procedure prescribed under Clause 8.1 of the U.P. Electricity Supply Code, 2006 was not followed. Neither any date for personal hearing has been fixed nor a speaking order as is required has been passed.

Sri Chetan Chatterjee, learned counsel appearing on behalf of the Electricity Department seeks time to produce the original record before this Court on the next date.

List as fresh on 12.1.2023.

Until the next date of listing, no coercive measure shall be taken against the petitioner in pursuance to the impugned recovery certificate dated 4.8.2022.

Order Date :- 6.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

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Petitioner :- Shwetanshu Kumar Ojha

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Nand Lal Pandey, Suyash Pandey

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

In compliance of our previous order, photostate copy of the original record has been placed before us by Sri Chetan Chatterjee, learned Counsel appearing on behalf of Purvanchal Vidyut Vitran Nigam Limited.

A perusal of the record reveals that no date was fixed for hearing after receipt of written objections from the petitioner and consequently he was also not afforded any opportunity of hearing which is a mandatory requirement under Clause 8.1 (b) (iii) and (iv). The order of assessment has been passed in a most perfunctory manner without, even alluding to the contents of the objection. Although, the scheme of the Code reveals that the Assessing Officer has to apply his mind to the facts of the case, objection filed by the assessee and evidence that is led. The final assessment order should record a specific finding that it was a case of theft of electricity and the material on basis of which the said conclusion has been arrived at, should be clearly disclosed in the assessment order.

We are daily coming across cases where the procedure provided for assessment under the Code is not being followed and the Assessing Officers are passing orders of assessment in a most casual and mechanical manner, burdening the docket of this Court. In some of cases, we find that even where recovery is withdrawn, it is not intimated to the Tehsil Authorities and in one such case (Writ-C No. 38921 of 2022), the person was also sent to civil prison although, on that date, there was no recovery against him.

We direct respondent No. 2 to remain represent before this Court on 18 January, 2023 alongwith his explanation as regards action which he proposes to take to ensure that such casual approach by the Officers is eschewed and in respect of assessments already made, without following the procedure prescribed under the Code.

List as fresh on 18 January 2023.

Sri Chetan Chatterjee, learned Counsel for Purvanchal Vidyut Vitran Nigam Limited shall communicate the instant order to respondent No. 2 for due compliance.

In the meantime, recovery in pursuance of the impugned assessment order shall remain in abeyance.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.1.2023

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Petitioner :- Shwetanshu Kumar Ojha

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Nand Lal Pandey, Suyash Pandey

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The instant petition has been filed praying for quashing of the recovery certificate dated 4.8.2022 issued by the Executive Engineer, U.P. Vidyut Vitral Nigam Limited, Ballia and for a mandamus restraining the respondents not to take any coercive action against the petitioner for realization of the amount in pursuance of the recovery certificate.

On 6.1.2023, we passed the following order:-

"It is submitted that the procedure prescribed under the Electricity Code, 2005 for making final assessment in case of theft of electricity has not been followed and in a mechanical manner the Executive Engineer has issued an order dated 17.12.2020 mentioning that in absence of any evidence filed by the petitioner, he is required to deposit the amount demanded from him by the provisional assessment order.

It is urged that the procedure prescribed under Clause 8.1 of the U.P. Electricity Supply Code, 2006 was not followed. Neither any date for personal hearing has been fixed nor a speaking order as is required has been passed.

Sri Chetan Chatterjee, learned counsel appearing on behalf of the Electricity Department seeks time to produce the original record before this Court on the next date.

List as fresh on 12.1.2023.

Until the next date of listing, no coercive measure shall be taken against the petitioner in pursuance to the impugned recovery certificate dated 4.8.2022."

On 12.1.2023, this Court after considering the instructions received by learned counsel for the respondent-Electricity Department and the documents placed by him before the Court, passed the following order:-

"In compliance of our previous order, photostate copy of the original record has been placed before us by Sri Chetan Chatterjee, learned Counsel appearing on behalf of Purvanchal Vidyut Vitran Nigam Limited.

A perusal of the record reveals that no date was fixed for hearing after receipt of written objections from the petitioner and consequently he was also not afforded any opportunity of hearing which is a mandatory requirement under Clause 8.1 (b) (iii) and (iv). The order of assessment has been passed in a most perfunctory manner without, even alluding to the contents of the objection. Although, the scheme of the Code reveals that the Assessing Officer has to apply his mind to the facts of the case, objection filed by the assessee and evidence that is led. The final assessment order should record a specific finding that it was a case of theft of electricity and the material on basis of which the said conclusion has been arrived at, should be clearly disclosed in the assessment order.

We are daily coming across cases where the procedure provided for assessment under the Code is not being followed and the Assessing Officers are passing orders of assessment in a most casual and mechanical manner, burdening the docket of this Court. In some of cases, we find that even where recovery is withdrawn, it is not intimated to the Tehsil Authorities and in one such case (Writ-C No. 38921 of 2022), the person was also sent to civil prison although, on that date, there was no recovery against him.

We direct respondent No. 2 to remain represent before this Court on 18 January, 2023 alongwith his explanation as regards action which he proposes to take to ensure that such casual approach by the Officers is eschewed and in respect of assessments already made, without following the procedure prescribed under the Code.

List as fresh on 18 January 2023.

Sri Chetan Chatterjee, learned Counsel for Purvanchal Vidyut Vitran Nigam Limited shall communicate the instant order to respondent No. 2 for due compliance.

In the meantime, recovery in pursuance of the impugned assessment order shall remain in abeyance."

Today in compliance of the above order, personal affidavit of the Managing Director, Purvanchal Vidyut Vitran Nigam Limited has been filed. He is also present in person.

It is stated in his affidavit that he has issued a Circular Letter dated 9.1.2023 instructing the concerned Officials to strictly follow the provisions of U.P. Electricity Supply Code, 2005 in making assessment in cases of theft/unauthorized use of electricity.

A perusal of the Circular Letter reveals that therein the Officers have also been advised to review each case and where it transpires that recovery has been issued without following proper procedure and/or without there being any order of final assessment, the same be withdrawn forthwith. They have also been advised to initiate fresh proceedings after following the procedure prescribed under the Code.

It is also stated in the affidavit that in compliance of an order passed in another case, he has called for data from all the divisions under him in relation to cases where proper procedure for assessment has not been followed and it is stated that the Officers, who are found guilty of not following proper procedure, disciplinary proceedings will be drawn against them.

In paragraph 11, it stated that at present disciplinary proceedings are in progress against six officials who have been found prima facie guilty of not complying with the provisions of law and dereliction of duties.

In respect of the petitioner, it is stated that the recovery against him has already been withdrawn and the communication sent in this behalf to Additional District Magistrate (Finance & Revenue), Ballia dated 11.1.2023 has been brought on record.

Sri M.C. Chaturvedi, learned Additional Advocate General assisted by Sri Chetan Chatterjee, Advocate appearing on behalf of respondent-Corporation submits that the data in respect of cases in which provisions of the Code had not been complied with will be supplied to this Court within three weeks. He also states that the department is examining each case and action against the Officials found guilty of dereliction of duties and not following the procedure prescribed under law will be taken in due course and the said proceedings will be taken to logical end.

Having regard to the stand taken in the above affidavit and the statement made by learned Additional Advocate General, we dispose of the petition in terms thereof.

Order Date :- 18.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)